EXCLUSIVE DISTRIBUTION AGREEMENT

Packaged Food Products - South India

This Agreement is made and entered into on this **20th day of July 2026** (the "**Effective Date**"), by and between:

(1) **HIMALAYA AGRO FOODS PRIVATE LIMITED**, a company incorporated under the Companies Act, 2013, having its registered office at Sector 44, Gurugram, Haryana 122003 (the "**Company**"); and

(2) **DECCAN FRESH DISTRIBUTORS PRIVATE LIMITED**, a company incorporated under the Companies Act, 2013, having its registered office at 56, Mount Road, Chennai, Tamil Nadu 600002 (the "**Distributor**").

The Parties are individually referred to as a "Party" and collectively as the "Parties".

RECITALS

A. The Company manufactures and markets packaged food products under its own brand across India.

B. The Distributor is engaged in the wholesale distribution of fast-moving consumer goods in South India and has the infrastructure and network required to distribute the Products in the Territory.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. APPOINTMENT

1.1 The Company hereby appoints the Distributor as its exclusive distributor for the sale of the Products in the Territory, and the Distributor accepts the appointment, on the terms and conditions of this Agreement.

1.2 "**Products**" means the packaged spices, ready-to-cook mixes and edible oils marketed under the "Himalaya Harvest" brand, as listed in Schedule 1, as amended by the Company from time to time. "**Territory**" means the States of Tamil Nadu, Kerala and Karnataka.

1.3 The Company reserves the right to sell the Products directly to modern-trade chains, e-commerce platforms and institutional customers within the Territory without any obligation to the Distributor.

2. EXCLUSIVITY AND NON-COMPETE

2.1 During the term of this Agreement, the Distributor shall not, directly or indirectly, distribute, market or sell any products that compete with the Products, within or outside the Territory.

2.2 For a period of three (3) years after termination or expiry of this Agreement, the Distributor shall not, in the Territory, engage in the distribution of any products competing with the Products or solicit any customer of the Company or the Distributor with whom the Distributor dealt during the term of this Agreement.

2.3 The Distributor shall actively promote the Products and shall not sell the Products to any person it knows or has reason to believe intends to resell outside the Territory.

3. MINIMUM PURCHASE COMMITMENT

3.1 The Distributor shall purchase a minimum of INR 3,00,00,000 (Rupees Three Crore) worth of Products in each contract year (the "**Annual Minimum**").

3.2 If the Distributor fails to purchase the Annual Minimum in any contract year, the Company may, at its option and without prejudice to any other right, (a) terminate the exclusivity granted under Clause 1; (b) terminate this Agreement with immediate effect; or (c) require the Distributor to pay as liquidated damages

an amount equal to fifteen percent (15%) of the shortfall.

4. ORDERS, PRICING AND PAYMENT

4.1 The Distributor shall place orders for the Products in writing. The Company shall use reasonable efforts to fulfil orders but shall not be liable for any delay or failure to supply for any reason.

4.2 The prices payable by the Distributor shall be the Company's price list in force at the time of the order. The Company may revise its price list at any time upon seven (7) days' notice.

4.3 The Distributor shall pay for each order in full, in advance, by RTGS or NEFT before dispatch of the Products. Alternatively, where the Company extends credit, the Distributor shall pay within fifteen (15) days of the invoice date, and shall maintain a security deposit of INR 25,00,000 (Rupees Twenty-Five Lakh) with the Company, which shall bear no interest.

4.4 The Distributor shall resell the Products at prices not lower than the maximum retail price less the margin specified by the Company.

5. DELIVERY AND RETURNS

5.1 Products shall be delivered Ex-Works the Company's warehouse at Gurugram, Haryana. Title and risk shall pass to the Distributor upon handing over to the carrier.

5.2 Products that are damaged or short-delivered must be reported to the Company within forty-eight (48) hours of receipt, failing which no claim shall be entertained.

5.3 The Company shall not be obliged to accept the return of Products, except Products that are found to be defective, which shall be replaced by the Company at its discretion. Expired or near-expiry Products held by the Distributor shall be at the Distributor's risk.

6. TRADEMARKS AND BRANDING

6.1 The Company grants the Distributor a non-exclusive, non-transferable licence to use the trademarks, logos and trade names of the Company solely in connection with the promotion and sale of the Products in the Territory.

6.2 The Distributor shall not register or attempt to register any trademark, domain name, social media handle or business name that incorporates or is confusingly similar to the Company's trademarks. All goodwill arising from the use of the trademarks shall inure solely to the benefit of the Company.

7. REGULATORY COMPLIANCE AND PRODUCT QUALITY

7.1 The Distributor shall store, handle and sell the Products in accordance with the Food Safety and Standards Act, 2006, the rules and regulations made thereunder, and the Company's storage and cold-chain guidelines, and shall maintain a valid FSSAI licence throughout the term.

7.2 The Company warrants that, at the time of dispatch, the Products shall conform to the applicable standards prescribed under the Food Safety and Standards Act, 2006. The Company disclaims all other warranties.

8. RECORDS, AUDIT AND REPORTING

8.1 The Distributor shall maintain complete and accurate records of its purchases, sales, stock and customers, and shall submit a monthly sales and inventory report to the Company by the 7th day of each month.

8.2 The Company may inspect the Distributor's premises, stock and books of account on one (1) day's notice.

9. TERM

9.1 This Agreement shall come into force on the Effective Date and shall continue for an initial period of five (5) years. It shall renew for successive terms of two (2) years unless either Party gives six (6) months' written notice of non-renewal.

10. TERMINATION

10.1 The Company may terminate this Agreement at any time without cause by giving thirty (30) days' written notice to the Distributor. The Distributor may terminate this Agreement without cause only after the expiry of the initial five (5) year period by giving one hundred and eighty (180) days' written notice.

10.2 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach that is not remedied within fifteen (15) days of notice, or becomes insolvent.

10.3 Upon termination, no compensation, goodwill payment or indemnity of any kind shall be payable by the Company to the Distributor on account of the termination, loss of investment, unsold stock, or loss of prospective profits. The Company may, at its option, repurchase unsold Products at the Distributor's invoice price less a handling charge of ten percent (10%).

11. INDEMNITY

11.1 The Distributor shall indemnify and hold harmless the Company against all claims, losses, damages, penalties and expenses arising from (a) the Distributor's breach of this Agreement; (b) negligent storage, handling or sale of the Products; (c) any statement or representation made by the Distributor not authorised by the Company; and (d) any act or omission of the Distributor's employees, agents and sub-distributors.

11.2 The Company's aggregate liability to the Distributor under this Agreement shall be limited to the value of the Products invoiced in the three (3) months preceding the claim.

12. CONFIDENTIALITY

12.1 The Distributor shall keep confidential the terms of this Agreement, the Company's price lists, margins, schemes, and customer information, and shall not use them for any purpose other than performing this Agreement. This obligation continues indefinitely.

13. FORCE MAJEURE

13.1 The Company shall not be liable for any failure or delay in supplying the Products due to any cause beyond its control, including raw material shortages, labour disputes, transportation disruptions, regulatory action and market conditions. The Distributor's payment obligations shall not be suspended by any force majeure event.

14. GOVERNING LAW AND JURISDICTION

14.1 This Agreement shall be governed by the laws of India.

14.2 All disputes shall be subject to the exclusive jurisdiction of the courts at New Delhi. The Company may, in addition, seek injunctive relief or enforce its rights in any court of competent jurisdiction.

15. GENERAL

15.1 The Distributor is an independent contractor and not an agent, employee or partner of the Company, and shall have no authority to bind the Company.

15.2 The Distributor shall not assign, sub-contract or appoint sub-distributors without the Company's prior written consent. The Company may assign this Agreement freely.

15.3 This Agreement constitutes the entire understanding of the Parties and supersedes all prior arrangements. No amendment shall be binding unless in writing and signed by the Company.

IN WITNESS WHEREOF, the Parties have executed this Agreement through their duly authorised representatives on the date first written above.

For and on behalf of
HIMALAYA AGRO FOODS PRIVATE LIMITED

Signature: _____
Name: _____
Designation: Authorised Signatory
Date: _____
Witness: _____

For and on behalf of
DECCAN FRESH DISTRIBUTORS PRIVATE LIMITED

Signature: _____
Name: _____
Designation: Authorised Signatory
Date: _____
Witness: _____